

FEDERAL MARITIME COMMISSION

Office of the Administrative Law Judges

FRANCIS SHEKA KANU, *Complainant*

v.

EJIKE DICKSON EZE DBA EJIKE INTERNATIONAL TRADE LIMITED; SEALINES INTERNATIONAL; SEAMATES INTERNATIONAL, INC.; AND MAERSK, *Respondents*.

DOCKET NO. 25-05

Served: June 9, 2025

ORDER OF: Richard AMBROW, *Administrative Law Judge*.

SECOND ORDER REQUIRING COMPLAINANT TO FILE MOTION FOR LEAVE TO AMEND AND PROPOSED AMENDED COMPLAINT

Complainant must file a Motion for Leave to Amend the Complaint, together with a Proposed Amended Complaint, **no later than June 24, 2025**. Failure to comply with this Order may result in the dismissal of Complainant's complaint for failure to prosecute pursuant to 46 C.F.R. § 502.72(b).

I. Background

A. The Complaint and First Notice of Appearance

On March 10, 2025, Complainant filed his Complaint.

In general, Complainant alleges that on June 5, 2021, he entered into a contract with Respondent Ejike Dickson Eze DBA Ejike International Trade Limited ("Ejike International Trade"). The contract provided that Complainant would pay \$4,134 in order to have a container shipped from Charlotte, North Carolina, to Queen Elizabeth Port in Sierra Leone, with an estimated arrival date of August 25, 2021. (Complaint, ¶¶ IV.A-IV.C). The container was booked for transportation by Respondent Maersk through its agent Respondent SeaLines International and SeaMates International, Inc. ("SeaLines"). (Complaint, ¶¶ IV.E-IV.F). The container, however, was routed through the wrong booking number, and was shipped to Pointe Noire in Congo on November 18, 2021. (Complaint, ¶¶ IV.G-IV.H). In June 2022, an employee of SeaLines contacted Maersk, but Maersk offered no help other than providing an email address to the SeaLines employee. (Complaint, ¶ IV.L). Complainant's agent convened a meeting between Complainant, Ejike International Trade and a SeaLines's employee, where they agreed to hire an agent in Congo to facilitate moving the container to Sierra Leone with SeaLines defraying the cost. (Complaint, ¶¶ IV.E-IV.F). Nevertheless, Ejike International Trade demanded an additional \$2,000 from Complainant to have the container moved, which Complainant paid. (Complaint,

¶ IV.N). The check in the record is dated November 21, 2023, and states that it is for “demurrage on charges Port Noir[.]” (See Complaint, PDF page 63¹).

The Complainant argues he is entitled to \$80,000 in reparations. (Complaint, ¶ VII). He cites four statutory provisions to support his claim for reparations: 46 U.S.C. §§ 41102(a) and (c), 41104(a)(4), and 41301(a) (which Complainant refers to by its former citation, § 1710(a)). Complaint, ¶¶ IV.P.1-4).

Complainant’s Complaint indicated that Complainant’s email address is francesgats@bellsouth.net.

Complainant also filed the First Notice of Appearance, asking to be notified of notices, orders, and decisions by electronic and regular mail. He gave the email address of francesgats@bellsouth.net.

B. Motions to Dismiss

On April 10, 2025, Respondent Maersk filed a Motion to Dismiss (the “Maersk MTD”). Respondent Maersk filed its original Certification of Service (“Maersk COS”) on April 10, 2025, showing service on Complainant using francesgats@bellsouth.net (*i.e.*, the email address in the Complainant’s Notice of Appearance). On April 16, 2025, Respondent Maersk filed an Amended Certification of Service (“Maersk ACOS”) showing that Complainant was served on April 11, 2025, via email using francesgats@bellsouth.net (*i.e.*, the email address in the Complaint), as well as FedEx, and that Complainant was served via regular mail on April 16, 2025.

On April 11, 2025, SeaLines filed a Motion to Dismiss (the “SeaLines MTD”) and accompanying Memorandum of Law. Per SeaLines’s original certificate of service (“SeaLines COS”), Complainant was served on April 11, 2025, via email at francesgats@bellsouth.net. Also on April 11, 2025, SeaLines filed additional certificates of service, the last one stating that the SeaLines MTD and accompanying Memorandum of Law were served on Complainant via email on April 11, 2025, at francesgats@bellsouth.net. (See Second Amended Certificate of Service of Motion to Dismiss (“SeaLines ACOS”).)

All pleadings, documents and papers of every kind: “must show that service has been made upon all parties to the proceeding . . . by delivering one copy to each party; by email; in-person hand delivery; or United States mail service, and be properly addressed with postage prepaid; by courier; or by facsimile.” (46 C.F.R. § 502.114(a)).

A response to a dispositive motion, such as a motion to dismiss, “must be served and filed within 15 days after the date of service of the motion.” (46 C.F.R. § 502.70(b); *see also* 46 C.F.R. § 502.69(g) (defining “dispositive motion” to include a motion to dismiss)).

Complainant was served with the Maersk MTD, as well as SeaLines MTD and accompanying Memorandum of Law, by email on April 10, 2025, and April 11, 2025, respectively, at the two email addresses for Respondent in the record:

¹ The exhibits to the Complaint are not numbered. I refer to it by the PDF page.

francesgates@bellsouth.net (*see* Complainant’s Notice of Appearance) and francesgats@bellsouth.net (*see* Complaint). (*See* Maersk COS; Maersk ACOS; SeaLines COS; SeaLines ACOS).

Service by email is a valid form of service. (46 C.F.R. § 502.114(a)). I find that the Maersk MTD, as well as the SeaLines MTD, were both served no later than April 11, 2025, which is the date by which both email addresses provided by Complainant (francesgates@bellsouth.net and francesgats@bellsouth.net) were served. Therefore, Complainant had until April 28, 2025,² to file a response to the Motions to Dismiss. (46 C.F.R. § 502.70(b)). Complainant has not responded to either Motion to Dismiss.

C. OTSC

On May 6, 2025, I issued the Order to Show Cause (“OTSC”). The OTSC required Complainant to respond to both Motions to Dismiss no later than May 20, 2025. The OTSC warned Complainant that if he failed to respond, his claims against Maersk and SeaLines may be dismissed for failure to prosecute.

The OTSC was sent via email to francesgates@bellsouth.net and francesgats@bellsouth.net.

As of the date of this Order, Complainant has neither responded to the Motions to Dismiss, nor to the OTSC.

D. Orders Related to Ejike International Trade

The Office of the Secretary received Ejike International Trade’s Answer to the Complainant’s Complaint on May 27, 2025, and it was provided to my office on May 28, 2025. Ejike International Trade’s Answer itself was signed and verified on April 4, 2025, and the cover letter was dated April 29, 2025. Parties were encouraged in the Initial Order to serve all filings by email to both secretary@fmc.gov and judges@fmc.gov to ensure that they are received timely.

Because I was unaware of Ejike International Trade’s Answer, I also directed the OTSC to Ejike International Trade. The OTSC indicated that Ejike International Trade did not timely answer or otherwise respond to the Complaint within 25 days, as required by 46 C.F.R. § 502.62(b). The OTSC required Ejike International Trade to file an answer or otherwise respond to the Complaint by May 20, 2025.

Before receiving Ejike International Trade’s Answer, I issued the Order Requiring Complainant to File Motion for Leave to Amend and Proposed Amended Complaint on May 28, 2025 (the “May 28 Order”).

Part of the May 28 Order was premised on the incorrect understanding that Ejike International Trade failed to answer or otherwise respond to the Complaint, and also failed to

² Because fifteen days after April 11, 2025, was a Saturday, the response deadline was extended until the following Monday, April 28, 2025. (*See* 46 C.F.R § 502.101).

respond to the OTSC. Nevertheless, the May 28 Order indicated that a default decision would not be entered against Ejike International Trade because the Complaint failed to state a plausible claim for relief against Ejike International Trade. In particular, the May 28 Order noted:

- **Untimely** – Complainant seeks \$80,000 in reparations. A complainant may seek reparations for an injury caused by a violation of the Shipping Act “[i]f the complaint is filed within 3 years after the claim accrues.” (46 U.S.C. § 41301(a)). Complainant allegedly contracted for the transportation of a container in June 2021, and the container arrived in the wrong location in the fall of 2021. (*See* Complaint, ¶¶ IV.A-IV.G). These events occurred over three years before the complaint was filed on March 10, 2025. Non-monetary relief is not time-barred, but, as discussed below, Complainant alleges no plausible claim for relief.
- **Lack of Plausible Allegations of a Violation of § 41102(c)** – The Commission identified five elements of a claim under § 41102(c). (46 C.F.R. § 545.4). The second element is that the alleged acts or omissions are occurring on a normal, customary or continuing basis. The Complaint alleges that Complainant’s container was shipped to the wrong destination and the error was not corrected. (Complaint, ¶¶ IV.G-IV.O). Although the Complainant alleges that these facts show that Respondents failed to establish reasonable practices (*see* Complaint, ¶ IV.P.1.(a)-(c)), that is not sufficient to allege a plausible claim. A complaint must contain sufficient factual matter to “state a claim to relief that is plausible on its face.” (*Bell Atlantic Corp. v. Twombly*, 550 U.S. 544, 570 (2007)). A claim “has facial plausibility when the plaintiff pleads factual content that allows the court to draw the reasonable inference that the defendant is liable for the misconduct alleged.” (*Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009)). “A pleading that offers ‘labels and conclusions’ or ‘a formulaic recitation of the elements of a cause of action will not do.’” (*Iqbal*, 556 U.S. at 678 (quoting *Twombly*, 550 U.S. at 555)). Alleging that a container was shipped to the wrong location, and asserting that there was a failure to establish a reasonable practice, without more, does not constitute a plausible claim that the act or omission was occurring on a normal, customary or continuing basis. Indeed, the Complainant alleges that it was “apparent and obvious” that there was “negligence[.]” (Complaint, ¶ IV.H), thereby undermining any allegation that the act or omission was occurring on a normal, customary or continuing basis.
- **Lack of Plausible Allegations of a Violation of § 41102(a)** – Complainant alleges a violation of § 41102(a).³ That section provides that a person may not, by

³ The Complaint incorrectly quotes § 41102(a) as prohibiting “‘unfair or unreasonable practice in the handling of property.’” (Complaint, ¶ IV.P.3.). Under the heading of § 41102(a), the Complaint alleges a combination of common law claims (*e.g.*, Respondents made misrepresentations), as well as claims under § 41102(c) (such as failure to conduct fair and reasonable business practices). (Complaint, ¶¶ IV.P.3.(a)-(c)). Common law claims are not properly before the Commission. And, as noted in the main text, the claims under § 41102(c) fail

use of false or other unjust or unfair means: “obtain or attempt to obtain ocean transportation for property at less than the rates or charges that would otherwise apply.” There are no allegations in the Complaint of any attempt to obtain ocean transportation for property at lower rates or charges than would otherwise apply.

- **Lack of Plausible Allegations of a Violation of § 41104(a)(10)** – Section 41104(a)(10) states that: “A common carrier, either alone or in conjunction with any other person, directly or indirectly, may not . . . unreasonably refuse to deal or negotiate[.]”⁴ Complainant alleges that Ejike International Trade is an ocean freight forwarder and shipping agent. (Complaint, ¶¶ III. and IV.E). There is no allegation that Ejike International Trade is a common carrier. For that reason alone, Complainant appears to fail to state a claim under § 41104(a)(10). (*OJ Commerce v. Hamburg Südamerikanische Dampfschiffahrts-Gesellschaft A/S & C., KG and Hamburg Sud North American, Inc.*, Dkt. No. 21-11, 2024 WL 4034610, at *1 n.2 (FMC Aug. 27, 2024) (“The ALJ denied all claims against HSNA because it found HSNA not to be a common carrier, instead HSNA was acting as a disclosed agent on behalf of HSDG. I.D. at 37. Neither side challenged this conclusion, and no evidence suggests it should be reviewed. . . .”)).
- **Lack of Plausible Allegations of a Violation of § 41301** – Though the Complaint also references 46 U.S.C. § 41301(a) by its former citation, § 1710(a) (Complaint, ¶ IV.4), that section does not prohibit any conduct or otherwise provide a basis for a claim. Instead, that section permits the filing of a complaint.

Even though the May 28 Order incorrectly stated that Ejike International Trade did not answer or otherwise respond to the Complaint, the May 28 Order correctly indicated that the Complainant does not allege a plausible claim for relief against Ejike International Trade. Therefore, the May 28 Order required Complainant to file a motion for leave to amend the Complaint, together with a proposed amended complaint, no later than June 4, 2025.

The May 28 Order was sent via email to francesgates@bellsouth.net and francesgats@bellsouth.net. Complainant did not respond to the May 28 Order.

E. Second Notice of Appearance

On May 30, 2025, Complainant emailed the Office of the Secretary a revised Notice of Appearance the (“Second Notice of Appearance”). The Second Notice of Appearance attempted to change Complainant’s email address to francesgats@gmail.com. The Office of the Secretary

because the Complaint does not plausibly allege that any act or omission is occurring on a normal, customary or continuing basis.

⁴ The statute was amended by the Ocean Shipping Reform Act of 2022 (“OSRA 22”), to add the following after “negotiate”: “, including with respect to vessel space accommodations provided by an ocean common carrier[.]” (*See* OSRA 22 (Pub. L. 117-146), Section 7(a)(1)(D)). Although OSRA 22 was effective June 16, 2022, the amendment does not appear to be relevant to this proceeding.

responded by indicating that it cannot accept the Second Notice of Appearance as filed, as that document and all future filings must be served on all parties and include a certificate of service.

II. Discussion

The Commission's rules provide that a case may be dismissed if the complainant fails to prosecute or to comply with these rules or an order in the proceeding. (46 C.F.R. § 502.72(b)).

Complainant has not responded to the Motions to Dismiss, the OTSC, or the May 28 Order. It appears, however, that Complainant has attempted to indicate that he would prefer to be served at a different email address (francesgats@gmail.com) than the one identified in the Complaint (francesgats@bellsouth.net), or the one identified in the First Notice of Appearance (francesgates@bellsouth.net). In addition, part of the May 28 Order was based on the lack of an answer from Ejike International Trade – even though that does not affect the analysis that the Complaint fails to state a plausible claim for relief against Ejike International Trade.

Although the May 28 Order discusses specifically why the Complaint fails to state a plausible claim for relief against Ejike International Trade, the Complaint fails to state a plausible claim for relief against Maersk and SeaLines for many of the same reasons (although Maersk is likely a common carrier for purposes of § 41104(a)(10)).

To ensure that any issues regarding service, and any issues regarding any confusion regarding the May 28 Order, have been cured, I will require Complainant to file a Motion for Leave to Amend the Complaint, together with a Proposed Amended Complaint, **no later than June 24, 2025**. Failure to comply with this Order may result in the Complaint being dismissed for failure to prosecute pursuant to 46 C.F.R. § 502.72(b).

III. Order

Based on the above, it is:

HEREBY ORDERED that **Complainant** file a Motion for Leave to Amend the Complaint, together with a Proposed Amended Complaint, **no later than June 24, 2025**. It is

FURTHER ORDERED that Complainant will be served via first class mail and Federal Express at 6042 The Plaza Charlotte, NC 28215, as well as the following email addresses: francesgats@gmail.com, francesgats@bellsouth.net, and francesgates@bellsouth.net.

Richard C.
Ambrow Jr -S

Digitally signed by Richard C. Ambrow Jr -S
Date: 2025.06.09 07:22:12 -07'00'

Richard Ambrow
Administrative Law Judge